

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPL049366: VANESSA JASSO vs AMERICAN HONDA MOTOR CO., INC

04/20/2026 in Department 44

Motion to Compel Arbitration and Stay Action

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant American Honda Motor Co., Inc.’s Petition to Compel Arbitration and Stay Action

Tentative Ruling:

Defendant American Honda Motor Co., Inc.’s Petition to Compel Arbitration and Stay Action is DENIED.

Relevant Background

This lemon law action arises out of the purchase of an alleged defective 2025 Honda Pilot on October 25, 2024. The Complaint was filed on August 21, 2025, and alleges claims for breach of express written warranty and breach of the implied warranty of merchantability under the Song-Beverly Act.

The instant motion was filed on February 17, 2026, at which time it was titled “Petition to Compel Arbitration and Stay Action.” The hearing date was listed as April 20, 2026. Plaintiff’s initial opposition was filed on February 27, 2026. Defendant’s initial reply memorandum was filed on April 13, 2026. In between the filing of the opposition and the reply, on March 24, 2026, Defendant appeared to file a second motion. The Court continued the matter to the current

hearing date due to confusion caused by the apparent filing of two motions. On June 18, 2026, Plaintiff filed another opposition. On June 18, 2026, Defendant filed a “supplemental brief” to address the confusion caused by the filing of the apparent second motion.

Trial is currently set for February 16, 2027.

Discussion

Legal Framework: Motions to Compel Arbitration

“A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (Code Civ. Proc., § 1281.)

California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: “A written provision in...a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction...shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development* (US), LLC (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that “when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute”].) In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.)

The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) A written provision in a contract to submit to arbitration for a dispute contemplated by the contract is valid, irrevocable and enforceable except on “such grounds as exist at law or in equity for the revocation of any contract.” (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United Health Care Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.)

Code of Civil Procedure section 1281.4 provides, in relevant part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) “The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374 1375.) Even “a single overlapping issue is sufficient to require imposition of a stay.” (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1153; see also *Coast Plaza Doctors Hospital v. Blue Cross of Calif.* (2000) 83 Cal.App.4th 677, 693 [staying all non arbitral claims other than for injunction]; *Federal Insurance Co.*, supra, 60 Cal.App.4th at p. 1374 [stay required where continuation of proceedings in the trial court “disrupts” arbitration proceedings and “can” render those proceedings ineffective].)

Application

The Existence of An Arbitration Agreement

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” (Code Civ. Proc., § 1281.2.)

“The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate exists.” (*Nixon v. AmeriHome Mortgage Co., LLC* (2021) 67 Cal.App.5th 934, 946; see also *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164 [“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.”].)

“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–544; see also Cal. Rules of Court, rule 3.1330.) “Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218; see also *People v. Skiles* (2011) 51 Cal.4th 1178, 1187 [“The means of authenticating a writing are not limited to those specified in the Evidence Code.” (citing Evid. Code, § 1410)].] and *ibid.* [“For example, a writing can be authenticated by circumstantial evidence and by its contents.”].)

Here, the Court initially notes that Defendant’s position is based on an alleged arbitration provision contained in a warranty booklet. (See generally Moving Papers.) Although the Lease

Agreement (With Arbitration Provision) is produced (Hix Decl., Exh. B), the Court reads the purpose of the production as being to establish that the vehicle is subject to Defendant's warranty rather than to support an argument that the Arbitration Provision on page 6 of 6 of the Lease Agreement (With Arbitration Provision) applies. With that in mind, the Court turns to the evidence.

Defendant offers a copy of a warranty booklet that it alleges applies to 2025 model year vehicles. The booklet contains a section titled "Agreement to Arbitrate." (Hix Decl., Exh. A at pp. 6-7; *Gamboa, supra*, 72 Cal.App.5th at p. 165.) This is sufficient to shift the burden to Plaintiff.

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (*Ibid.*)

In opposition, Plaintiff submits no evidence in support of her position and instead appear to relied on Defendant's documents in arguing that there is a lack of mutual assent because the arbitration provision was housed in a warranty booklet that was provided after the purchases. (*Id.* at 2:11-12.) Plaintiff does not deny that Defendant's "express warranties are attached to the Vehicle." (*Id.* at 3:11-12.) She does, however, dispute that any applicable warranty is a term of the Lease Agreement. (*Id.* at 3:20-23.)

The Song-Beverly Act defines an express warranty as "[a] written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance[.]" (Civ. Code, § 1791.2, subd. (a)(1); see also *Reyes v. Beneficial State Bank* (2022) 76 Cal.App.5th 596, 619-620 [claims under Song-Beverly "sound in contract"] and *Freas v. BMW of North America, LLC* (S.D. Cal. 2018) 320 F.Supp.3d 1126, 1132 ["Under California law, a claim for breach of express or implied warranties necessarily sounds in contract." (internal quotation marks omitted)].) Thus, the Court finds that while a warranty's terms may not technically be part of a contract, the warranty relationship necessarily arises out of the sale of a good, which itself arises out of a contractual relationship between the buyer and the seller of the good. As a result, the manufacturer's relationship to that transaction is necessarily intertwined with the sale.

The Second Appellate District's recent decision in *Kostandian v. American Honda Motor Co.* (2026) __ Cal.Rptr.3d __, 2026 WL 1495175 is instructive to the resolution of this motion. In that case, the plaintiff leased an alleged defective Acura, eventually filing suit in which claims were alleged against the dealer and the manufacturer, including warranty claims. (*Id.* at *1.) Both the lease agreement and the warranty booklet contained arbitration provisions. (*Id.* at *1 - *2.) The trial court denied the defendants' motion to compel arbitration and the defendants appealed. (*Id.* at *1.) The arbitration provision in the warranty booklet indicated that it was governed by the FAA and contained a 30-day opt-out provision. (*Id.* at *2.) The Court of Appeal noted that, with regard to the arbitration provision contained in the warranty booklet, "the trial court

indicated such provisions are viewed with a high degree of skepticism as they bind consumers who remain silent during the opt-out period.” In denying the motion based on the warranty’s arbitration provision, the trial court found that an acknowledgment of receiving warranty information was insufficient to show mutual assent.” (*Id.* at *3.) The Court of Appeal held that the manufacture had established the existence of an agreement to arbitrate, summarizing the defendants’ evidence as follows:

Appellants produced a copy of this booklet containing American Honda Motor’s express warranties for the subject vehicle and an arbitration agreement. Appellants also recited verbatim the relevant provisions of the booklet’s arbitration agreement in their moving papers. The agreement’s language indicates any disputes between respondent and American Honda Motor as to their relationship, including any claims related to respondent’s warranty and the performance or manufacturing of American Honda Motor’s products, is to be decided by arbitration, not a judge or jury. The agreement also specifies respondent may opt out of arbitration within 30 days after the vehicle’s delivery date, but respondent is bound to the agreement if he does not opt out. Appellants presented a document, the final inspection at delivery sheet, showing respondent provided his signature and initials confirming his receipt of the owner’s manual and warranty information.

Accordingly, appellants satisfied their initial burden of establishing an arbitration agreement as to American Honda Motor. Appellants presented a copy of the agreement, stated the relevant terms thereof verbatim, and provided the necessary allegations. The burden therefore shifted to respondent to dispute the existence of an arbitration agreement as to American Honda Motor.

(*Id.* at *6.)

The Court of Appeal found that the plaintiff buyer failed to meet his burden in opposing the existence of the agreement, reasoning as follows:

While respondent here posits there was no mutual assent since he did not receive the warranty booklet until after the sale was completed, no evidence was presented supporting this assertion. Respondent provided no declaration stating when he received the warranty booklet. Even if respondent had provided such statements, they would be at odds with his signings confirming he received the vehicle’s warranty information as well as his pleadings indicating “representations were made [to respondent] in Manufacturer’s New Vehicle Limited Warranty.” In addition, respondent does not argue he had no reason to believe he had a contractual relationship with American Honda Motor. Thus, respondent failed to meet his burden of proof in disputing the existence of an arbitration agreement with American Honda Motor.

(*Id.* at *7.)

The facts of *Kostandian* are materially different than those here. Unlike the manufacturer in *Kostandian*, Defendant here fails to present any evidence of a document showing that Plaintiff acknowledged receipt of the warranty booklet at final delivery. Such evidence might have been

presented in the form of a declaration from a dealership employee, such as someone in the finance department or the salesperson. The Court in *Kostandian* placed importance on the fact that the plaintiff buyer in that case had signed a specific document confirming receipt of the warranty information. (*Kostandian, supra*, ___ Cal.Rptr.3d ___, 2026 WL 1495175 at * 6.) Notably, the warranty handbook here is offered by Defendant's lawyer rather than Defendant's representative.

Defendant does point to the Lease Agreement itself, which indicates that the vehicle was subject to Defendant's warranty if a box was not checked. (Hix Decl., Exh. B at p. 3 of 6 [No. 16].) The Court is not persuaded. First, there is no declaration from the individual who prepared the form that explains why the box was not checked. Second, that a vehicle is subject to a manufacturer's warranty is not conclusive evidence that the warranty presented here is the warranty applicable to the subject vehicle or that it contains an arbitration provision.

Defendant also argues that Plaintiff's Complaint establishes that she received the presented warranty at the time of sale, not after the sale. On this issue, the Complaint alleges, in relevant part, as follows:

Along with the acquisition of the Vehicle, Plaintiff received written warranties and other express and implied warranties, including, but not limited to, warranties from Defendants that the Vehicle and its components would be free from all defendants in material and workmanship; that the Vehicle would pass without objection in the trade under the Contract description; that the Vehicle would be fit for the ordinary purposes for which it was intended; that the Vehicle would conform to the promises and affirmations of fact made; and that Defendants would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship.

The warranties included a three (3) year or 36,000 mile basic warranty and a five (5) year or 60,000 mile powertrain warranty.

(Complaint, ¶¶ 7-8.)

The Court finds that the language "along with the acquisition of the vehicle" also does not necessarily indicate that Plaintiff received the warranty presented here or that it contained an arbitration provision.

Defendant has not presented any evidence of exactly when or how the warranty was provided to Plaintiff, or of whether and how Plaintiff acknowledged receipt of the booklet, if at all. The Court also notes that Defendant's attorney describes the warranty as pertaining to 2025 model year cars. But the cover of the book is not provided to indicate which vehicles it might apply to, and the pages provided do not appear to state a year. Moreover, there is no evidence that the booklet in evidence is exactly the same as the one allegedly provided to Plaintiff.

Finally, there is no evidence before the Court suggesting that the subject of arbitration ever arose during the lease transaction, or that the alleged arbitration provision was called to Plaintiff's attention. For example, there is no evidence of the title the warranty booklet or that it included

the word “arbitration.” A party generally is not bound by inconspicuous contractual terms that were not reasonably communicated before the alleged acceptance. (*Windsor Mills, Inc. v. Collins & Aikman Corp.* (1972) 25 Cal.App.3d 987, 993 [“[A]n offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.”; *Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862 [quoting *Windsor Mills*].)

In sum, while Plaintiff’s Complaint alleges receipt of an express written warranty and statutory warranty rights, it does not allege that Plaintiff agreed to arbitrate disputes with Defendant. Defendant’s presentation of a coverless warranty booklet through its attorney, rather than a person with knowledge, coupled with an unchecked box on a contract to which Defendant was not a party, together are insufficient for Defendant to establish mutual assent. Accordingly, the Court finds that Defendant has not met its burden of establishing the existence of an agreement to arbitrate with Plaintiff.

III. Disposition

For the reasons stated herein, the motion is DENIED. Counsel for Plaintiff is to give notice of the Court’s ruling.